

DATA PROCESSING ADDENDUM (DPA)

to Master Services Agreement SG-MSA-2023-ASHFORD-02
Effective Date: March 1, 2023

This Data Processing Addendum (the “DPA”) is entered into by and between **Société Générale International S.A.** (the “Controller”), and **Ashford Clearing Networks LLC** (the “Processor”).

This DPA forms an integral part of the Master Services Agreement and is subject to all terms and conditions thereof. Where Regulation (EU) 2016/679 (the “GDPR”) and other applicable data protection laws apply, particularly Article 28 thereof, the Parties intend to ensure compliance.

1. DEFINITIONS

1.1 “Personal Data” means any information relating to an identified or identifiable natural person. 1.2 “Processing” means any operation performed on Personal Data. 1.3 “Data Subject” means the natural person to whom Personal Data relates. 1.4 “Subprocessor” means any third party engaged by the Processor that processes Personal Data on behalf of the Controller.

2. PROCESSING SPECIFICATIONS

The Processor shall process Personal Data solely on behalf of and in accordance with the documented instructions of the Controller.

2.1 Categories of Data Subjects: Retail Banking Customers and Institutional Traders of the Controller

2.2 Nature and Purpose of Processing: Card-present and e-commerce transaction clearing, authorization routing, and merchant settlement necessary for the performance of the Services under the MSA

2.3 Types of Personal Data: Full names, billing addresses, credit card numbers (Primary Account Numbers or PANs), card expiration dates, account histories, transaction records, and any other personal data provided by the Controller or generated during the provision of Services

2.4 Duration of Processing: For the duration of the MSA and for a period not exceeding sixty (60) days after termination or expiry thereof, unless otherwise instructed by the Controller

3. SUBPROCESSORS

3.1 The Processor shall not engage any Subprocessor without the prior written consent of the Controller. 3.2 The Controller hereby authorizes the Processor to engage the following Subprocessors as of the Effective Date:

- Amazon Web Services (AWS), Region: us-east-1 (Virginia), for secure cloud infrastructure and data hosting.
- QuickServe BPO Solutions, Region: Manila, Philippines, for Tier-1 customer support and chargeback case handling, with access to transaction metadata.

3.3 The Processor represents that agreements are in place with each Subprocessor; however, the agreement on file for QuickServe BPO Solutions does not reference Standard Contractual Clauses, an EU adequacy decision, or any other recognized cross-border transfer safeguard mechanism. 3.4 The Processor shall notify the Controller in writing at least thirty (30) days in advance of any intended addition or replacement of a Subprocessor; no such notice was issued prior to onboarding QuickServe BPO Solutions in 2024.

4. TECHNICAL AND ORGANIZATIONAL MEASURES (TOMs)

The Processor shall implement and maintain appropriate technical and organizational measures to ensure the security of Personal Data, including:

- Encryption of Personal Data at rest using AES-256 (per Processor representation; see SOC2 CC6.3-04 exception regarding key rotation failures).
- Encryption of Personal Data in transit using TLS 1.3 where supported; TLS 1.0 fallback remains active on legacy settlement endpoints pending remediation.
- Role-based access controls; multi-factor authentication not enforced on 2 legacy administrative interfaces.
- Vulnerability scanning performed quarterly; no independent penetration test on file for 2025.
- Employee training on data protection, completed at hire with no documented refresher program.
- Incident response procedures exist but detection of the November 2024 incident took 9 days, exceeding documented targets (see SOC2 CC7.2-01).

5. DATA BREACH NOTIFICATION

5.1 In the event of a confirmed or reasonably suspected Personal Data Breach affecting Controller Personal Data, the Processor shall notify the Controller via security-alerts@socgen.com within five (5) business days of initial discovery.

5.2 Such notification shall include: (i) a description of the nature of the breach, (ii) the categories and approximate number of Data Subjects and records concerned, (iii) the likely consequences, and (iv) the measures taken or proposed to address the breach.

5.3 The Processor shall cooperate fully with the Controller in investigating and remediating any such breach and in fulfilling the Controller's obligations under Articles 33 and 34 of the GDPR.

6. ASSISTANCE TO THE CONTROLLER

The Processor shall assist the Controller in ensuring compliance with GDPR obligations, including data subject rights, data protection impact assessments, and prior consultations with supervisory authorities.

7. RETURN OR DELETION OF PERSONAL DATA

Upon termination or expiry of the MSA, or at any time upon the Controller's request, the Processor shall, at the Controller's choice, return or securely delete all Personal Data and certify in writing that it has done so, except to the extent retention is required by applicable law.

8. AUDITS

The Controller or its designated auditor shall have the right to audit the Processor's compliance with this DPA upon reasonable notice, not more than once per year, unless there is reasonable suspicion of non-compliance.

9. GOVERNING LAW

This DPA shall be governed by the laws of France and the applicable provisions of EU data protection law.

IN WITNESS WHEREOF, the Parties have executed this DPA as of the Effective Date.

For Société Générale International S.A. (Controller):

Name: _____

Title: _____

Date: _____

For Ashford Clearing Networks LLC (Processor):

Name: _____

Title: _____

Date: _____

APPENDIX A: PROCESSING DETAILS

Element	Description
Categories of Data Subjects	Retail Banking Customers and Institutional Traders of the Controller
Nature of Processing	Card-present and e-commerce transaction clearing, authorization routing, and merchant settlement necessary for the performance of the Services under the MSA
Types of Personal Data	Full names, billing addresses, credit card numbers (Primary Account Numbers or PANs), card expiration dates, account histories, transaction records, and any other personal data provided by the Controller or generated during the provision of Services
Duration	For the duration of the MSA and for a period not exceeding sixty (60) days after termination or expiry thereof, unless otherwise instructed by the Controller

APPENDIX B: APPROVED SUBPROCESSORS

Subprocessor	Location / Region	Purpose
Amazon Web Services (AWS)	us-east-1 (Virginia)	Secure cloud infrastructure and data hosting
QuickServe BPO Solutions	Manila, Philippines	Tier-1 customer support and chargeback case handling